

Section 120 provides for an inquiry by the railway administration in accidents other than those mentioned in clause 111.

121. Returns.-- every railway administration shall send to the Central Government, a return of accidents occurring on its railway, whether attended with injury to any person or not, in such form and manner and at such intervals as may prescribed.

Comment

Section 121 imposes an obligation on the railway administration to send return of accidents to the Central Government.

122. Power to make rules in respect of matters in this Chapter.--

(1) The Central Government may, by notification, make rules to carry out the purposes of this Chapter.

(2) In particular, and without prejudice to the generality of the foregoing power, such rules may provide for all or any of the following matters, namely :

- (a) the injury to property which shall be considered serious under Cl. (a) of sub-section (1) of Sec. 133;
- (b) the forms of notice of accidents to be given under Sec. 113 and the particulars of the accident such notices shall contain ;
- (c) the manner of sending the notices of accidents, including the class of accidents to be sent immediately after the accident;
- (d) the duties of the Commissioner, railway administration, railway servants, police officers and Magistrates on the occurrence of an accident ;
- (e) the persons to whom notices in respect of any inquiry under this Chapter are to be sent, the procedure to be followed in such inquiry and the manner in which a report or such inquiry shall be prepared ;
- (f) the nature of inquiry to be made by a railway administration into the causes of an accident under Sec. 120 ;
- (g) the form and manner of sending a return of accidents by a railway administration under Sec. 121.

Comment

Section 122 empowers the Central Government to make rules to carry out the purposes of Chapter XII. The matters in respect of which rules shall be made by the Central Government are enumerated in detail in sub-section (2) of this clause.

CHAPTER XIII

Liability of Railway Administration for Death and injury to passengers due to accidents.

123. Definitions. In this Chapter , unless the context otherwise requires,--

- (a) “accident” means an accident of the nature described in Sec.124:
- (b) “dependant” means any of the following relatives of a deceased passenger, namely:-
 - (1) the wife, husband , son and daughter, and in case the deceased passenger is unmarried or is a minor, his parent:
 - (2) the parent, minor brother or unmarried sister, widowed sister, widowed daughter-in-law and a minor child or a predeceased son, if dependent wholly or partly on the deceased passenger:
 - (3) a minor child of a pre-deceased daughter, if wholly dependent on the deceased passenger:
 - (4) the paternal grand parent wholly dependent on the deceased passenger.

2© “Untoward incident” means –

- (1)(i) the commission of a terrorist act within the meaning of sub-section (1) of sec. 3 of the Terrorist and Disruptive Activities (Prevention) Act, 1987 (28 of 1987),
or
- (ii) the making of violent attack or the commission of robbery or dacoity;
or
- (iii) the indulging in rioting, shoot-out or arson.

By any person in or on any train carrying passengers, or in a waiting hall, cloak room or reservation or booking office or on any platform or in any other place within the precincts of a railway station: or

- (2) the accidental falling of any passenger from a train carrying passengers.)